



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

400 Seventh Street, S.W.
Washington, D.C. 20590

MAR 10 2000

DOT-E 12011
(SECOND REVISION)

EXPIRATION DATE: February 28, 2002

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Compagnie des Containers Reservoirs
Paris, France
(US Agent: ERMEWA, Inc., Houston, TX)

(See Appendix A to this document for a list of additional grantees)

2. PURPOSE AND LIMITATION: This exemption authorizes an alternate internal visual inspection schedule for certain DOT Specification IM 101 portable tanks used in dedicated service for the transportation in commerce of chloronitrobenzenes para, solid. This exemption provides no relief from any Hazardous Materials Regulation (HMR) other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.32b(b) in that the inspection interval for the periodic internal inspection is increased to five years.
5. BASIS: This exemption is based on the application of ERMEWA, Inc. dated February 22, 2002, submitted in accordance with § 107.105.

MAR 10 2000

Continuation of DOT-E 12011 (2nd Rev.)

Page 2

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description --	Hazard Class/ Division	Identification Number	Packing Group
Chloronitrobenzenes para, solid	6.1	UN1578	II

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a DOT Specification IM 101 steel portable tank conforming to § 172.102(c)(7)(i) IM Tank Configuration T14.

b. TESTING -

(1) Each portable tank must be tested and inspected as specified in § 173.32(b) for DOT Specification IM 101 portable tanks except that the internal visual inspection required in § 173.32b(b) may be performed every five years in lieu of every two and one-half years.

(2) Each portable tank must be leak tested prior to each filling.

c. OPERATIONAL CONTROLS - DOT specification IM 101 portable tanks authorized under this exemption may only be used in dedicated service for the transportation in commerce of chloronitrobenzenes para, solid.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or change are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.

MAR 10 2000

b. a current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

c. MARKING - Each tank must be plainly and durably marked "DOT-E 12011" as specified in § 172.302(b) and (c).

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight and cargo vessel.
10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this exemption.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this

MAR 10 2000

Continuation of DOT-E 12011 (2nd Rev.)

Page 4

exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



for Robert A. McGuire
Acting Associate Administrator
for Hazardous Materials Safety

MAR 10 2000

(DATE)

Address all inquiries to: Associate Administrator for
Hazardous Materials Safety, Research and Special Programs
Administration, Department of Transportation, Washington, D.C.
20590.
Attention: DHM-31.

The original of this exemption is on file at the above office.
Photo reproductions and legible reductions of this exemption
are permitted. Any alteration of this exemption is
prohibited.

Dist: FHWA, FRA, USCG
PO: PTolson/sdc

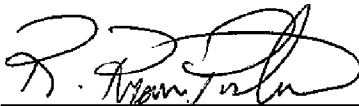
MAR 10 2000

Continuation of DOT-E 12011 (2nd Rev.)

Page 5

The following are hereby granted party status to this exemption based on their application(s) submitted in accordance with § 107.107 or § 107.109, as appropriate:

Company Name City/State	Applica- tion Date	Issue Date	Expira- tion Date
Monsanto Europe, SA Antwerp, Belgium U.S. Agent: ERMEWA, Inc. Houston, TX	2/22/99	MAR 10 2000	2/28/2002



for Robert A. McGuire
Acting Associate Administrator for
Hazardous Materials Safety